

Statement of Institutional Failure

Public Record — Unaddressed Matters

Case references

AC-2025-LON-004293 | BV20D01752 | BL-2024-001217 | N08YX064

Nadia Zahmoul

Litigant in Person

17 April 2026 | Updated 25 May 2026

Veritas Numquam Perit

PUBLIC RECORD — UNADDRESSED MATTERS

Case references: AC-2025-LON-004293 | BV20D01752 | BL-2024-001217 | N08YX064

Date: 17 April 2026 — updated 25 May 2026 (the day-counts for CPR 3.1(7), recusal application, and MPS criminal referral channels are updated to today; all other figures are as at 17 April 2026 unless otherwise stated)

This document records the institutional handling of a series of formally raised matters concerning a disabled litigant in person across four parallel High Court proceedings between October 2025 and April 2026.

Every fact stated in this document is independently verifiable from court filings, sealed orders, official correspondence, and public records. The complete documentary archive is publicly available, indexed, and timestamped.

THE BINARY QUESTION

A central question arising from these proceedings is as follows:

Does an identifiable judicial order revoking the Applicant's statutory participation measures under FPR Part 3A exist — or does it not?

If such an order exists, it can be identified precisely — judge, date, order, and reasons. No such order has been identified in response to those enquiries. If it does not exist, the measures were revoked administratively, without authority, and every procedural step taken after that revocation was taken against a disabled litigant without the protections the court itself had determined she required.

This question has been formally raised with the Family Division, the Administrative Court, the Court of Appeal, HMCTS, the Justice Committee, the Lord Chancellor, and the Metropolitan Police.

WHAT HAPPENED

February 2024. A ten-day final hearing took place before Mr Justice MacDonald in the Family Division of the High Court. During oral evidence, 25 references were made to the Applicant's autism and PTSD. These references are documented in the attendance notes prepared by counsel's pupil.

19 February 2024. Karim Zahmoul gave sworn financial disclosure. Oxus Acquisition Corp shares were declared at \$0. The SEC Proxy Statement dated 16 January 2024 — 34 days earlier — confirmed the value at \$565,000. The Business Combination closed on 7 February 2024. The shares launched on Nasdaq on 8 February 2024. The declaration of \$0 was made 11 days after the Nasdaq launch.

18 April 2024. The judgment was handed down. It contains 111 paragraphs. It contains zero references to autism. It contains zero references to PTSD. It does not address the

Oxus discrepancy. It does not examine the sworn declaration of \$0 against the SEC-confirmed value of \$565,000.

Post-trial. The participation measures that had been granted during the trial were revoked. No order was made. No hearing was held. No reasons were given. No notice was provided.

Without participation measures, the Applicant was not included in draft order negotiations. A final order was made on the respondent's unilateral terms. A decree absolute was granted and is being appealed. No payment has been received from the settlement. Three debt claims have been filed:

- **Detach Lending Limited (BL-2024-001217):** approximately £1.1 million. Litigation funding loan. Debt accruing at £281.38 per day.
- **Withers LLP (N08YX064):** £128,218.15. Former solicitors' fees. Default judgment entered 8 April 2026. The Applicant did not receive the claim form. Service was effected at an address she left in June 2023. A service challenge has been filed.
- **GLD costs (AC-2025-LON-004293):** £3,125.50. Costs of a judicial review that was refused on grounds that do not correspond to the claim as pleaded.

Total exposure: £1,231,343.65. The Applicant has £89 in her bank account.

The judicial review. In December 2025, the Applicant filed a judicial review raising seven specific grounds concerning administrative acts. On 11 March 2026, Collins Rice J refused permission on the papers. The order states that the Applicant made "criminal complaints" against her husband and complains of the defendants' response. The claim was not about criminal complaints. It was about administrative acts. Ground 7 — the administrative void — is not mentioned in the order. The order appears to address a different characterisation of the claim from that pleaded.

The court's own correction mechanism. A CPR 3.1(7) application asking the court to correct its own order was sealed on 12 March 2026. As at 25 May 2026, it has not been assigned to a judge. It has not been determined. **74 days have elapsed.**

The trial audio. On 15 April 2026, the court-approved transcription company Marten Walsh Cherer reported that the audio recording of the ten-day final hearing is corrupted and not working. The audio is the only independent record of what was said at trial. Responsibility for providing a working copy has not been resolved.

The recusal application. A recusal application was filed against MacDonald J on 10 February 2025. It has not been determined. **15 months have elapsed.**

The criminal referral. A criminal referral for perjury, misconduct in public office, and money laundering was filed with the Metropolitan Police on 20 March 2026. Six channels have been attempted across 66 days. Seven separate reference numbers have been generated. None are connected in the MPS system. The primary reference cannot be accessed by the MPS's own system. A complaint has been filed with the Independent Office for Police Conduct. On 28 April 2026, operational engagement on the criminal referral file

(CCR-6501-26-0100-000) was received from the MPS; the safeguarding referral under Care Act 2014 s.42 was actioned by the MPS on 17 April 2026 (ref 0103/17APR26), classifying the Applicant as an adult at risk.

The international dimension. The matter is under active investigation by IRS Criminal Investigation, New York Field Office. An SEC Whistleblower submission is on record. The controlling shareholder of Oxus Acquisition Corp is Kenes Rakishev, a Kazakh national with documented connections to Prince Andrew, Duke of York.

THE INSTITUTIONAL RECORD

The following table records every institution that has been asked to engage with this matter, what was asked, what was received, and whether substantive engagement occurred.

Institution	What was asked	What was received	Engaged?
HMCTS / Moj (Pre-Action Protocol)	Four-stage pre-action protocol escalation (October–November 2025). Binary question: does the revocation order exist? Final notice issued 31 October 2025.	Complaint handler misclassified the matter as customer service. The binary question was not answered at any stage. No response recorded following the final notice.	No substantive engagement recorded
Family Division (MacDonald J)	Recusal application. EX107 transcript at public expense. Written reasons for refusal.	Recusal: not determined (15 months). EX107: one-line refusal. Reasons: none.	No substantive engagement recorded
Administrative Court (Collins Rice J)	Permission for JR on seven specific grounds concerning administrative acts.	Permission refused on different grounds. Criminal complaints addressed — not pleaded. Ground 7 not mentioned. TWM certified.	No substantive engagement recorded
Administrative Court (CPR 3.1(7))	Court to correct its own order. Sealed 12 March 2026.	No assignment to judge. No determination. 74 days elapsed.	No substantive engagement recorded
Court of Appeal	Permission to appeal. Re-opening.	All applications refused on the papers.	No substantive engagement recorded
HMCTS (Audio / Complaint Handling)	Pre-action protocol. Binary question: does the revocation order exist?	Complaint handler misclassified. Question not answered. Corrupted audio: deflected to transcriber.	No substantive engagement recorded
Justice Committee (Andy Slaughter MP)	11 written evidence submissions across 58 days.	Zero engagement. No acknowledgement. No referral. No response.	No substantive engagement recorded

Lord Chancellor (David Lammy KC MP)	Ministerial oversight. Copied on all submissions.	No response.	No substantive engagement recorded
Metropolitan Police	Criminal referral: perjury, MiPO, money laundering. Six channels. 522-page package.	Seven reference numbers. None connected. Operational engagement received 28 April 2026 on CCR-6501-26-0100-000. Care Act s.42 safeguarding referral actioned by MPS 17 April 2026.	Substantive engagement recorded from 17 April 2026
NCA Economic Crime	Referral transmitted 23 March. Follow-up 13 April.	No response.	No substantive engagement recorded
CPS	Criminal referral.	Refused same day. "CPS does not accept referrals from individuals."	Jurisdiction declined
Attorney General	Oxus perjury referral and contempt application (21 May 2025).	No response.	No substantive engagement recorded
Joe Powell MP (constituency)	Constituent request. JR. Undetermined matters.	No response since February 2026. No response to any communication since 2025.	No substantive engagement recorded
EHRC	Systemic PSED failures. Ref 14765260.	Acknowledged. No substantive engagement.	No substantive engagement recorded
Women & Equalities Committee	Written evidence. PSED failures.	No response.	No substantive engagement recorded
Victims' Commissioner	Referral. Disabled victim.	No response.	No substantive engagement recorded
PHSO	Direct complaint. PHSO noted MP endorsement was required but accepted the referral.	Accepted. Case ref C-2182742. Investigation listed.	Substantive engagement recorded

Seventeen institutions were formally asked to engage. Substantive engagement was recorded from two: the PHSO accepted the complaint without deflection, and the Metropolitan Police actioned a Care Act 2014 s.42 safeguarding referral on its own assessment of the documentary record (17 April 2026, ref 0103/17APR26), followed by operational engagement on the criminal referral file on 28 April 2026. Other institutions

recorded no substantive engagement, or responded in a manner that did not address the question as framed.

THE NUMBERS

Between October 2025 and April 2026, the Applicant filed 61 formal submissions across courts, Parliament, police, regulatory bodies, and the Lord Chancellor's office. Every submission is documented in the Submission Reply Chronology, which is available in full in this archive.

Measure	Figure
Total formal submissions filed	61
No response received	28 (46%)
Procedural only (auto-reply / acknowledged)	14
Substantively deficient (wrong question answered)	12
Deflection or jurisdiction refused	6
Adequate / accepted	1 (PHSO at time of original; +1 MPS safeguarding since)
Submissions to Justice Committee	11 — zero engagement
MPS police channels attempted	6 channels, 7 references, operational engagement on file CCR-6501-26-0100-000 received 28 April 2026
Days since CPR 3.1(7) sealed	74 — no judicial determination
Days since recusal application filed	15 months — not determined
Settlement received	£0
Bank balance	£89
Total debt exposure	£1,231,343.65

The full Submission Reply Chronology — documenting every submission, every response, and every assessment — is available in this archive.

THE MEDICAL RECORD

The following is the documented medical record of the Applicant. Every entry is independently verifiable from NHS clinical records, diagnostic reports, and hospital attendance records.

Date	Source	Finding
19-28 Feb 2024	Trial attendance notes	25 references to autism and PTSD during oral evidence before

		MacDonald J. Zero references in judgment.
Feb 2024	Court order	Participation measures granted under FPR Part 3A in recognition of autism and PTSD. Subsequently revoked without order, hearing, or reasons.
17 Jun 2025	CLAAS referral email	Central London Adult Autism Service (Sophia Iacovou / Dr Cheung) — referral and initial assessment.
20 Jun 2025	A&E attendance record	Hospitalisation at 06:09am. Droperidol 10mg IM administered. Directly caused by the legal proceedings and the absence of participation measures.
1 Jul 2025	NHS CLAAS diagnostic report	Formal diagnosis: Autism Spectrum Condition. NHS Central London Adult Autism Service.
Jul 2025	NHS CLAAS clinical assessment	PTSD diagnosis confirmed. Both autism and PTSD are recognised disabilities under the Equality Act 2010.
2025-2026	Clinical records	Sjögren's syndrome diagnosed (biopsy confirmed October 2025, active flare). Autoimmune condition exacerbated by prolonged stress of proceedings.
10 Dec 2025	Clinical letter	Medical evidence submitted to Administrative Court with JR claim. Health update filed 26 February 2026.
15 Apr 2026	Dr Omar Shoukry	Consultant psychiatrist attended. Clinical letter requested for court proceedings.
17 Apr 2026	MPS safeguarding	Care Act 2014 s.42 referral actioned by MPS officers attending the Applicant in person (ref 0103/17APR26). Adult at risk classification.

Participation measures were subsequently revoked without a recorded order or reasons. Hospitalisation occurred on 20 June 2025.

THE CRIMINAL REFERRAL

A criminal referral was filed with the Metropolitan Police on 20 March 2026. The referral sets out three categories of alleged offence, supported by documentary material:

Offence	Evidence	Status
Perjury — Perjury Act 1911 s.1	Sworn declaration 19 Feb 2024: Oxus shares = \$0. SEC Proxy Statement 16 Jan 2024: value = \$565,000. Nasdaq launch 8 Feb 2024. Declaration made 11 days after launch.	Filed 20 March 2026. Seven MPS references. Operational engagement on file CCR-6501-26-0100-000 received 28 April 2026. IOPC complaint filed 15 April 2026.
Misconduct in Public Office (common law)	Recusal application undetermined 15 months. Participation measures revoked without order. 25 disability references suppressed from judgment. EX107 refused without reasons.	Filed as part of referral. Operational engagement on file CCR-6501-26-0100-000 received 28 April 2026.
Money Laundering — POCA 2002 ss.327-330	Oxus Acquisition Corp (\$325m SPAC). Controlling shareholder: Kenes Rakishev. Origin of sponsor funds opaque. IRS:CI investigating since December 2023.	IRS Criminal Investigation (reported as active) — New York Field Office. SEC Whistleblower TCR 17284-760-060-567 on record.

MPS Channel	Date	Reference	Result
Online portal	20 Mar 2026	CCR-6501-26-0100-000	Operational engagement received 28 April 2026
In person — Charing Cross	24 Mar 2026	CRN 01/7340002/26	Refers to different person
CRIB	26 Mar 2026	—	Bounced — external senders blocked
Commissioner's office	20 Mar - 16 Apr	—	Four identical automated deflections
Online portal (x5)	3-15 Apr 2026	CIN / CNP / CUU / CIN	Five references generated. None connected.
Safeguarding referral — MPS-initiated	17 Apr 2026	0103/17APR26	Care Act 2014 s.42 — Adult at Risk classification
TOTAL	66 days	7 references + safeguarding referral	Substantive engagement from 17 April 2026

A 522-page complete referral package was submitted to Commissioner Sir Mark Rowley on 30 March 2026. It was followed by operational engagement on the criminal referral file

(CCR-6501-26-0100-000) on 28 April 2026 and by the Care Act 2014 s.42 safeguarding referral made by MPS officers in person on 17 April 2026. A complaint has been filed with the Independent Office for Police Conduct (IOPC) on 15 April 2026 (transaction ID 2293476).

The trial audio recording — which is the primary evidence for the perjury referral — was reported as corrupted on 15 April 2026. Responsibility for providing a working copy has not been resolved.

ARCHIVE

This document and all supporting materials are publicly archived.

The archive is indexed, searchable, and independently verifiable. All documents referenced are available in their original form.

INDEPENDENTLY VERIFIABLE SOURCES

- Judgment: DH v RH (No 3) [2024] EWFC 79 and DH v RH (No 4) [2024] EWFC 114 — National Archives
- Oxus SEC filings: SEC EDGAR CIK 1852973
- JR Claim: AC-2025-LON-004293 — Administrative Court
- TWM Order: Collins Rice J, 11 March 2026 — sealed
- CPR 3.1(7): Sealed 12 March 2026 — 74 days unanswered as at 25 May 2026
- IOPC Complaint: Transaction ID 2293476 — filed 15 April 2026
- MPS criminal referral: CCR-6501-26-0100-000 — operational engagement 28 April 2026
- MPS safeguarding referral: 0103/17APR26 — Care Act 2014 s.42 — actioned 17 April 2026
- IRS Criminal Investigation: New York Field Office — active
- SEC Whistleblower: TCR 17284-760-060-567

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Public archive: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

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